

Superior Court of Washington, County of _____

In re Guardianship/Conservatorship of:

Case Number: _____

Order Appointing Lawyer

(Clerk Code: OAPAT)

Clerks Action: 6

Respondent/Minor

Order Appointing Lawyer

1. The court has considered (*requesting party's name or court's own*) _____'s motion to appoint a lawyer.
2. The court finds there are good reasons to appoint a lawyer for (*name/s*): _____

3. **Reasons for appointment in a Minor Guardianship** (*Check all that apply*)

- ☐ Does not apply. This is **not** a Minor Guardianship case.
- ☐ The **parent/s** listed in section 2 ☐ can ☐ **cannot** afford a lawyer (indigent) and:
- ☐ objects to guardianship over their child.
- ☐ may consent to guardianship over their child, but a lawyer is needed to make sure this consent is fully informed.
- ☐ needs a lawyer because: _____

Important! The court **must** appoint a lawyer at **public expense** for an indigent parent who appears in a minor guardianship case if any one of the above statements is true. If a parent is **not** indigent, the court **may** appoint a lawyer if any one of the above statements is true.

- ☐ The **child** listed in section 2:
- ☐ is age 12 or older and has asked for a lawyer.
- ☐ should have a lawyer as recommended by a Guardian ad Litem or Court Visitor.
- ☐ has chosen a lawyer who has not yet been appointed by the court.
- ☐ needs a lawyer because: _____

4. Reasons for appointment in a Minor Conservatorship or Protective Arrangement
(Check all that apply)

- ☐ Does not apply. This is **not** a Minor Conservatorship or Protective Arrangement.
- ☐ The minor's chosen lawyer has not yet been appointed by the court.
- ☐ The minor's rights cannot otherwise be adequately protected and represented.
- ☐ The minor needs a lawyer because: _____
- ☐ A lawyer must be appointed for the minor at **public expense** because:
- ☐ the minor cannot afford a lawyer.
- ☐ the expense of a lawyer would result in substantial hardship to the minor.
- ☐ the minor does not have practical access to funds to pay a lawyer.
(The court may require reimbursement if this is the only reason to appoint a lawyer at public expense.)
- ☐ The minor's **parent** needs a lawyer because:
- ☐ they object to conservatorship/protective arrangements over their child.
- ☐ they may consent to conservatorship/protective arrangements over their child, but a lawyer is needed to make sure this consent is fully informed.
- ☐ other: _____

5. Reasons for appointment in an Adult Guardianship, Conservatorship, or Protective Arrangement (Check all that apply)

- ☐ Does not apply.
- ☐ Respondent's chosen lawyer has not yet been appointed by the court.
- ☐ Respondent's rights and interests cannot otherwise be adequately protected and represented.
- ☐ This is an Emergency Guardianship/Conservatorship.
- ☐ Respondent objects to the petition.
- ☐ Respondent requests appointment of a lawyer.
- ☐ Respondent needs a lawyer because: _____
- ☐ A lawyer must be appointed at **public expense** because:
- ☐ Respondent cannot afford a lawyer.
- ☐ the expense of a lawyer would result in substantial hardship to the Respondent.
- ☐ Respondent does not have practical access to funds to pay a lawyer.
(The court may require reimbursement if this is the only reason to appoint a lawyer at public expense.)

➤ **The Court Orders:**

6. Appointment

The court appoints the following person as lawyer for (name) _____

Name and WSBA number: _____

Address: _____

Phone number: _____

Email address (*optional*): _____

☐ This lawyer is the willing counsel of this person's choosing.

The court appoints the following person as lawyer for (*name*) _____

Name and WSBA number: _____

Address: _____

Phone number: _____

Email address (*optional*): _____

☐ This lawyer is the willing counsel of this person's choosing.

7. Payment

☐ Reserved. The court may decide the responsibility to pay and the reasonableness of fees at a later hearing.

☐ The lawyer must be paid:

☐ at **private** expense of the person being represented.

☐ at **public** expense.

The lawyer must be paid at a rate of \$ _____ per hour up to a maximum of \$ _____ or _____ hours unless the lawyer obtains prior approval from the court for a different amount.

The court may decide later if anyone must reimburse public or private fees paid.

Ordered.



Date

Judge or Commissioner

Parties or their lawyers fill out below:

Presented by:



Signature of Party/Lawyer

Print Name

WSBA No.

Copy received and approved by:



Signature of Party/Lawyer

Print Name

WSBA No.



Signature of Party/Lawyer

Print Name

WSBA No.



Signature of GAL or Visitor

Print Name